

		Plaintiff alleges “Defendants breached their duty to provide construction work at Plaintiff’s residence according to acceptable industry standards and building code guidelines.” (FAC ¶ 49.) As with the cause of action for breach of contract, Plaintiff’s negligence cause of action is also brought against House Next Door and Does 1 through 10. To the extent Synovus, identified as Doe 1, is included in this cause of action, Plaintiff has not met his burden of demonstrating a triable issue of material fact exists as to the negligence cause of action as to Synovus for the reasons discussed above. The undisputed evidence demonstrates Synovus was not a party to the contract between Plaintiff and House Next Door, was not responsible for performing any of the work on Plaintiff’s house and had nothing to do with the actual construction work performed at Plaintiff’s house. (UMF Nos. 40, 41.) Plaintiff has not opposed the motion and therefore presents no evidence demonstrating the breach of any duty by Defendants relating to construction work performed on Plaintiff’s property. Based on the above, the Court GRANTS Defendants GreenSky, LLC and Synovus Bank’s Motion for Summary Judgment.
16.	LAW OFFICES OF MARK B. PLUMMER, PC VS. NETWORKSOLUTIONS.COM 2020-01141868	MOTION FOR JUDGMENT ON THE PLEADINGS Defendant Nili Alai’s Motion for Judgment on the Pleadings as to Plaintiffs’ First Amended Complaint (FAC) is DENIED. In the Motion, Defendant argues as follows: “Plaintiffs’ First Cause of Action for Defamation fails because the First Amended Complaint does not plead the allegedly defamatory statements with the specificity required under California law, including the exact words alleged to be defamatory, the context in which the alleged statements appeared, the date of publication, the alleged publisher of any specific statement, and facts sufficient to establish falsity as to any specifically identified statement. Plaintiffs’ Fourth Cause of Action for Declaratory Relief fails because it is derivative of the defective defamation claim and does not state an independent basis for relief.” (Motion, p. 1.) Defendant contends that allegedly defamatory words must be pled with specificity. (Motion, pp. 5-6.) Here, Defendant argues, “The FAC does not satisfy this basic pleading requirement. Plaintiffs do not quote the alleged website statements. Plaintiffs do not attach the alleged statements. Plaintiffs do not identify the alleged website by name in the FAC. Plaintiffs do not identify the complete context in which the alleged statements appeared, the date of publication, or the alleged publisher of any specific statement.” (Id. at p. 6.)

In the FAC, Plaintiffs allege, “the Defendants, and each of them, agreed to maliciously make false and defamatory factual claims on a website intended to defame Plaintiffs in their professional capacity, such as the claim that Plaintiffs are incompetent, dishonest, the office was unsafe and unpermitted, and that Plaintiffs are vexatious litigants, none of which are true.” (FAC, ¶ 6.)

“The general rule is that the words constituting an alleged libel must be specifically identified, if not pleaded verbatim, in the complaint.” (*Kahn v. Bower* (1991) 232 Cal.App.3d 1599, 1612, fn. 5.)

Regarding the alleged statements about Plaintiffs’ “incompetency” and “dishonesty,” the Court of Appeal ruled they were not pled with sufficient specificity and regardless, those phrases were not found in the evidence presented in support of Plaintiffs’ claims. (12/9/22 G060354 Opinion at pp. 11-13.) However, the foregoing language addressed the appeal of Defendant Nabili which resulted in the Court striking the “incompetent and dishonest” allegations, but not the allegations regarding Plaintiffs being vexatious litigants who operate an unsafe and unpermitted office. Following the Court of Appeal’s ruling, Plaintiffs are no longer pursuing their “incompetent and dishonest” allegations against either Defendant. Plaintiffs dismissed the “incompetent and dishonest” allegations on 1/23/23.

The Court of Appeal held the remaining allegations were not protected and did not decide whether the allegations regarding the unsafe/unpermitted office or vexatious litigant status were sufficiently specific. Therefore, the Court of Appeal’s analysis regarding the specificity of the “incompetent and dishonest” statements is not determinative of this motion.

The allegations that Defendants stated Plaintiffs operate an unsafe and unpermitted office and are vexatious litigants are sufficiently specific at the pleading stage to allow the Court to evaluate the viability of Plaintiffs’ claims and to allow Defendants to conduct discovery regarding the allegations. Defendants are on notice as to the alleged content of the statements and they may conduct further discovery or investigation if necessary to obtain evidence of the verbatim statements, some of which have already been produced by Plaintiffs as part of the appeal. Therefore, the motion is denied.